

26STLC01161 26STLC01161

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-15

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F15%2F2026

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Case Number: 26STLC01161 Hearing Date: July 15, 2026 Dept: 26

TENTATIVE RULING:

Defendant Yan

Dong's Motion to Quash Service of Summons is denied.

Analysis:

Plaintiff State Farm General Insurance Company

("Plaintiff") filed the instant action for insurance subrogation against

Defendants Yan Dong ("Defendant Dong") and others on February 23, 2026. On

April 8, 2026, Defendant Dong filed the instant Motion to Quash Service of

Summons. The Motion first came for hearing on May 13, 2026, at which time the

Court found it was not accompanied by a proof of service demonstrating service of the papers and notice of hearing upon Plaintiff. (Minute Order, 05/13/26.)

The Court continued the hearing to allow Defendant Dong to demonstrate service

of the Motion and Notice of New Hearing Date in accordance with the statutory

requirements. (Ibid.) Specifically, by filing proof of service of the

moving papers and notice of the new hearing date by June 8, 2026. (Ibid.)

Defendant Dong filed proof of service of the papers and notice of hearing on

May 18, 2026.

On July 2, 2026, Plaintiff filed a Proof of Substituted

Service with respect to Defendant Dong. Plaintiff filed no opposition to the instant Motion.

Discussion

Defendant Dong moves to quash service of the Summons and

Complaint in this action pursuant to Code of Civil Procedure section 418.10, which provides: "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1), emphasis added.) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).)

Substantively,

"[w]hen a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) A proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence, of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

It is

unclear what purported service Defendant Dong seeks to quash with the instant Motion. No proof of service of the Summons and Complaint upon Defendant Dong had been filed prior to the filing of the instant Motion. Instead, on March 24, 2026, Plaintiff filed a Declaration Re: Due Diligence showing unsuccessful attempts to serve Defendant Dong at 2065 Marengo Ave., South Pasadena, California 91030. (Declaration Re: Diligence, filed 03/24/26.) Defendant Dong's Motion is further confusing in that it is supported by a declaration stating they reside at No. 32, Lane 88, Tianshan Street, Apt. 903, Changing District, Shanghai, China, however, the contact information on the header of the first page lists their address as 500 N. Campbell Ave., Alhambra, CA 91801. (Motion, Dong Decl., ¶1.) Following the initial Motion hearing on May 13, 2026, Defendant Dong filed a Notice of Continued Hearing that lists yet another address: 1770 S. Los Robles Ave., San Marion, CA 91108. (Notice of Continued Hearing, filed 05/14/26, p. 1.)

The instant

Motion, therefore, does not address any apparent service upon Defendant Dong,

nor credibly demonstrate Defendant Dong's address. Without this information, the Court cannot find that service upon Defendant Dong should be quashed. Furthermore, on July 2, 2026, Plaintiff filed a Proof of Substitute Service on Defendant Dong at the 1770 S. Los Robles Ave. address. To the extent Defendant Dong's request to quash service pertains to earlier service attempts, the Proof of Substitute Service filed on July 2, 2026 renders that request moot. Nor has Defendant Dong filed any papers addressing the substitute service at the 1770 S. Los Robles Ave. address to show a basis to grant the Motion to Quash.

Conclusion

Defendant Yan

Dong's Motion to Quash Service of Summons is denied.

Judicial Assistant to give notice.